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Case Number: 23TRCV03297 Hearing Date: August 11, 2026 Dept: M

LOS

ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,

August 11, 2026

Department M Calendar No.

PROCEEDINGS

Ozair Construction & Design, Inc. v. Hillcrest

Ventures, LLC, et al.

23TRCV03297

1. Ozair Construction & Design, Inc.'s Motion to

Bifurcate/Sever Fourth Cause of Action

2. Great American Insurance Company's Motion to Stay Action

3. Hillcrest Ventures, LLC's Motion to Continue Trial

Date

TENTATIVE

RULING

Ozair

Construction & Design, Inc.'s Motion to Bifurcate/Sever Fourth Cause of

Action is denied.

Great

American Insurance Company's Motion to Stay Action is denied.

Hillcrest

Ventures, LLC's Motion to Continue Trial Date is granted.

Background

Plaintiff filed the Complaint on October 6, 2023. Plaintiff alleges the following facts. Plaintiff, as a sub-contractor, provided demolition, structural steel, drywall, insulation, plumbing, gas fixtures and related services at 336 E Hillcrest Blvd, Inglewood, California – the Project. Plaintiff was not paid for the services. Several cross-complaints have also been filed in this action.

On September

12, 2025, a notice of bankruptcy stay as to Defendant Hillcrest Ventures, LLC ("Hillcrest") was filed. In an opposition filed on April 29, 2026 to the motion to bifurcate, Hillcrest Ventures, LLC acknowledges that the bankruptcy stay is now lifted.

Request

for Judicial Notice

Hillcrest's

requests for judicial notice dated April 29, 2026 and July 6, 2026 are granted pursuant to Evidence Code section 452(d).

Motion

to Bifurcate

Code Civ.

Proc., § 598 states:

"The court

may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of

pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time. Where trial of the issue of liability as to all causes of action precedes the trial of other issues or parts thereof, and the decision of the court, or the verdict of the jury upon such issue so tried is in favor of any party on whom liability is sought to be imposed, judgment in favor of such party shall thereupon be entered and no trial of other issues in the action as against such party shall be had unless such judgment shall be reversed upon appeal or otherwise set aside or vacated.

If the

decision of the court, or the verdict of the jury upon the issue of liability so tried shall be against any party on whom liability is sought to be imposed, or if the decision of the court or the verdict of the jury upon any other issue or part thereof so tried does not result in a judgment being entered pursuant to this chapter, then the trial of the other issues or parts thereof shall thereafter be had at such time, and if a jury trial, before the same or another jury, as ordered by the court either upon its own motion or upon the motion of any party, and judgment shall be entered in the same manner and with the same effect as if all the issues in the case had been tried at one time.”

Code Civ.

Proc., § 1048(b) states: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.”

Plaintiff

moves for the following orders:

“1. Severing

the Fourth Cause of Action for Recovery on Mechanics' Lien Release Bond from the First, Second, and Third Causes of Action;

2. Staying proceedings on the First, Second,

and Third Causes of Action against Defendant Hillcrest Ventures, LLC, and staying the Fourth Cause of Action as to Defendant Hillcrest Ventures, LLC only, pending resolution of the Chapter 11 bankruptcy proceedings in In re Hillcrest Ventures, LLC, Case No. 1:25-bk-11472-MB (Bankr. C.D. Cal.);

and 3.

Permitting this action to proceed against Defendant Great American Insurance Company on the Fourth Cause of Action for Recovery on Mechanics' Lien Release Bond.” (Notice of Motion, p. 1, line 27 to p. 2, line 6).

The motion is made on the grounds that, while Hillcrest filed a notice of bankruptcy stay, Plaintiff should be allowed to proceed against a non-bankruptcy debtor such as the surety Great American Insurance Company. Plaintiff has failed to establish that the factors of expedition, economy, and efficiency of handling the litigation are fostered by bifurcating the fourth cause of action to permit the action to proceed against Great American Insurance Company (“Great American”) separately from the other causes of action.

First, and most fundamentally, as noted above, the bankruptcy stay is no longer in place, and therefore, the grounds set forth for seeking bifurcation are no longer applicable. In the Reply, Plaintiff speculates that Hillcrest may file another bankruptcy due to its alleged insolvency. However, the Court cannot rule on this motion based on such speculation and potential for additional procedural machinations.

In fact, the issues and claims set forth against both Hillcrest and its surety Great American are more efficiently resolved through a single trial. Bifurcation would actually cause more inefficiency to the parties and the Court. The issues in Plaintiff’s causes of action against Hillcrest and its cause of action against the surety Great American are inextricably intertwined. The issues will necessarily require inquiry and analysis into the same evidence and involve the same witnesses. In addition, bifurcating the trial would greatly enhance the potential for prejudice from inconsistent rulings and outcomes.

Thus, Plaintiff’s Motion to Bifurcate/Sever Fourth Cause of Action is denied.

Motion
to Stay

Defendant

Great American Insurance Company moves for an order to stay the entire action in its entirety. Defendant argues that a stay should be entered until the bankruptcy of Hillcrest is resolved.

Generally, an automatic bankruptcy stay protects only the debtor, the debtor's estate, and some property of the debtor. See *In re Chugach Forest Products, Inc.*, 23 F.3d 241, 246 (9th Cir. 1994). However, here, General American Insurance Company states that it is merely the surety of Hillcrest and any liability against it would be purely derivative. Thus, Great American argues that a stay is appropriate.

In any event, as noted above, the bankruptcy of Hillcrest has now been resolved. Thus, the grounds set forth to request a stay are no longer applicable.

Therefore, Great American Insurance Company's Motion to Stay is denied.

Motion to Continue Trial

Pursuant to CRC Rule 3.1332(a), "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain." Under CRC Rule 3.1332(b), "A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered."

Under CRC Rule 3.1332(c), "[a]lthough continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may

include good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial."

Other factors set forth in CRC Rule 3.1332(d) that are relevant in determining whether to grant a continuance include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

Defendant Hillcrest moves for the following orders:

"1. An order continuing the Trial Date in this matter from the current date of November 3, 2026 for a period of roughly eight months until July 6, 2027, or a date thereafter that is convenient for the Court:

2. An order continuing the Final Status Conference in accordance therewith, and to have all discovery, expert exchange, motion cutoff dates, and all other trial-related dates be governed by the new trial date." (Notice of Motion, p. 2, lines 6-11). 1)

Defendant argues that the eight month bankruptcy stay essentially acted to stall any progress in this case and the ability to prepare for the current trial date. In addition, the parties wish to participate in mediation. The

Court is also in receipt of a stipulation to continue trial filed by Hillcrest and signed by the following parties: Great American Insurance Company, Rupert Construction Services, Best Choice Plumbing and Repair,

Defendant's motion for trial continuance is granted. Defendant has adequately met the applicable factors noted above in Cal. Rules of Court 3.1332. A decisive factor is the need to continue investigating and meaningfully litigate this action now because of the delay that had been previously caused due to the lengthy bankruptcy stay. No parties have demonstrated any prejudice would result from a continuance. No written opposition was filed to this motion.

Therefore, Defendant's motion to continue trial is granted.

Defendant Hillcrest is ordered to give notice of this ruling.